CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE Y

Measure Y asks voters to adopt the City of Benicia Charter ("Charter") which will allow the City of Benicia ("City") to exercise the authority over municipal affairs granted to charter cities by the California Constitution. The proposed Charter specifically limits the City's new power over municipal affairs solely with respect to the power to enact a system for the imposition, levy and collection of a tax on the conveyance of real property. Accordingly, the proposed Charter allows the City to enact a Real Property Transfer Tax Ordinance ("Measure Z"), the proceeds of which will fund City services.

The City is currently a general law city which means the powers of the City are governed by the general laws established by the State Legislature or enacted by voter initiative. Charter cities, on the other hand, are specifically authorized by the State Constitution to govern themselves as to those matters deemed "municipal affairs". In contrast, state law applies to charter cities for matters of "statewide concern".

Whether a given activity is a municipal affair, over which a charter city has sole authority, or of statewide concern, over which the State legislature has authority, is an issue for the State judicial system to decide based on the facts and circumstances of each case. Generally, a matter is of statewide concern rather than a municipal affair when its impact is primarily regional.

A general law city may elect to become a charter city by following statutory procedures and may limit the scope of matters the charter governs. Here, the City utilized the procedure in Government Code section 34458.

A "yes" vote on Measure Y adopts the City of Benicia Charter. A "no" vote on Measure Y will maintain the City of Benicia as a general law city. Measure Y will be adopted if it is approved by a majority vote of the electorate. If Measure Y is approved by a majority of voters and the Charter is adopted, any future amendment or expansion of the scope of the Charter would be subject to voter approval.

Pursuant to Government Code section 34458.5 requirement for providing certain disclosures in a ballot description, the proposed Charter specifically limits the City's new power over municipal affairs solely with respect to the power to enact a system for the imposition, levy and collection of a tax on the conveyance of real property, and provides that in all other respects, the powers of the City shall remain as they currently are, and shall be governed by the general laws of the State of California. The City's existing council-manager form of government would continue unless changed by the voters, and the proposed Charter does not give the City Council any new powers to raise its compensation or that of other City officials without voter approval.

Measure Y was placed on the ballot by the City Council of the City of Benicia.

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